

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR DECEMBER 29, 2025
DEPARTMENT 38
JUDICIAL OFFICER: MARK SCHMUCK

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE TEMPORARY JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- In Person
- Remotely through Zoom Videoconferencing

Zoom videoconferencing for Department 38:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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1. 9:00 AM	P23-00677 HEARING IN RE: STATUS	CONSERVATORSHIP OF: JULIET GUTIERREZ
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Need appearances to report status.

Notes:

Petition for Approval of First Account and Report of Trustee filed 12/04/25 by Kristina Coley, set 02/23/26

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2. 9:00 AM	P25-00554 LIMITED CONSERVATORSHIP OF: ERICA ALLEN HEARING IN RE: PETITION FOR APPOINTMENT OF CONSERVATOR OF THE PERSON FILED BY LAZAYA PORTOR AND MARTHA WILLIAMS ON 3/28/25 Petitioners still must do the following: 1. Appear at the hearing 2. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice, including Regional Center, and file a Proof of Service with court. 3. Capacity Declaration (Judicial Council Form GC-335) to show whether proposed conservatee lacks capacity to give informed medical consent. PrC § 1890 4. Submit a revised Proposed Order that includes attachment 31 and attachment 33. The Court is waiting for these items: A. Appearance by proposed conservatee B. Assessment from Regional Center. PrC § 1827.5; WIC § 4620. C. Report of attorney Sepehr Notes: a. Letters of Temporary Conservatorship, person, expire 12/28/25
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3. **P25-01419 LIMITED CONSERVATORSHIP OF: VONDA NORTH**
9:00 AM HEARING IN RE: PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON FILED ON
08/13/25 BY NORMA NORTH AND LEE NORTH

Need:

1. Appearances
2. Return of citation or waiver by counsel. PrC § 1824

The Court is waiting for these items:

- A. Appearance by proposed conservatee or waiver by counsel
- B. Report from attorney Patanisha Davis Pierson

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4. **P25-01464** **CONSERVATORSHIP OF: ERIC JEFFERSON**
9:00 AM HEARING IN RE: PETITION FOR APPOINTMENT OF CONSERVATOR OF PERSON FILED ON 8-19-25 BY
ALANNA MCKINNEY

Petitioner still must do the following:

1. Appear at the hearing
2. File a verified declaration to confirm whether there are any living second degree relatives
3. Have a copy of the _Petition and Notice of Hearing mailed to anyone added by verified declaration and file the completed Notice of Hearing with the Court.
4. Have a Citation Form GC-320 issued by the clerk and have a copy of the Citation personally served on conservatee or waiver by counsel. File the original with the Clerk of the Court with Proof of Service completed by server.
5. File a Confidential Capacity Assessment and Declaration (Judicial Council Form GC-335) to show whether proposed conservatee lacks capacity to give informed medical consent. PrC § 1890
6. File a confidential verified declaration to answer items 10 and 11 of the Confidential Conservator Screening Form.
7. File a verified declaration to clarify that you have attended the orientation class for unlicensed conservators pursuant to LR 7.416
8. File a verified declaration to complete Petition item 1.c, regarding Bond, and attachment 1.c, if needed.
9. Submit a Proposed Order, form GC-340

The Court is waiting for these items:

- A. Report of attorney Martin Johnson

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5. **P25-01580** **ESTATE OF: RUEBEN MARTINEZ AVILA**
9:05 AM HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 09/08/25 BY
MONIKA ANNE LINGLE

Need:

1. Appearances

Notes:

- a. Proof of Publication incorrectly states that a Will is being admitted. Petition does not request that a Will be admitted and no copies are available for examination at the court. PrC § 8120. Nevertheless, court will accept the publication as being substantially compliant with PrC § 8121.
- b. Will lodged 10/31/25
- c. Petition to Probate Will filed 11/24/25 by Rueben Anthony Avila, set 03/25/26

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6. 9:05 AM	P25-00580 HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED BY TROBI A ADAMS ON 09/05/2025	ESTATE OF: JOANNE SCOTTON
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Petition Approved
Proposed Order Submitted
No Appearance Required

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7. 9:30 AM	P24-02260 GUARDIANSHIP OF: GABRIEL BETTS HEARING IN RE: AMENDED PETITION FOR APPOINTMENT OF GUARDIAN OF THE PERSON AND ESTATE FILED ON 08/01/25 BY CANDICE C, GOMEZ
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Need appearances to report status of opening blocked account, and to report status of filing Inventory and Appraisal.

Notes:

Per 10/01/2025 hearing minutes, Inventory & Appraisal Form was to be filed by 12/01/25. To date, it has not been filed.

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8. **P24-02304 GUARDIANSHIP OF: SANTANA-PIERRE MOSS**
9:30 AM HEARING IN RE: PETITION FOR APPOINTMENT OF GUARDAIN OF THE PERSON FILED BY LINDA J GARY
ON 12/30/24

Petitioner, great-grandmother, still must do the following:

1. Appear at the hearing to report status, including mediation
2. File a verified declaration to include current address of father
3. Do one or the other, but not both: (1) Have a copy of the Notice of Hearing, Petition Form GC-210 and Order Appointing Temporary Guardian personally served on father and file Proof of Service or have each person sign a consent and waiver form (GC-211); OR (2) If either person cannot be found, submit a declaration (GC-02), explaining what efforts have been made to find her/him. CRC 7.52

Notes:

- a. Letters of Temporary Guardianship issued to petitioner expire 09/30/2025.
- b. Objection filed by mother Mikosha "Moche" Moss 01/27/2025.
- c. Stipulation and Order filed 6-18-2025.
- d. Declarations Regarding Notice to father DeCarlos Charleston filed 4-1-2025 and 6-13-2025.
- e. Court has dispensed with further formal service on maternal grandfather Michael Moss, pursuant to Decl. filed 6-13-2025.

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9. 9:30 AM	P25-01913 GUARDIANSHIP OF: SELAH SANCHEZ HEARING IN RE: PETITION FOR APPOINTMENT OF GUARDIANSHIP OF THE PERSONS FILED BY CHEMIKA RASH ON 10/27/25 Petitioner, maternal grandmother, still must do the following: 1. Appear at the hearing 2. Do one or the other, but not both: (1) Have a copy of the Notice of Hearing, Petition Form GC-210 and Order Appointing Temporary Guardian personally served on father and file Proof of Service or have each person sign a consent and waiver form (GC-211); <u>OR</u> (2) If either person cannot be found, submit a declaration (GC-02), explaining what efforts have been made to find her/him. CRC 7.52 3. Do one or the other, but not both: (1) Have a copy of the Notice of Hearing and Petition Form GC-210 served by mail on sibling, and file Proof of Service or have each person sign a consent and waiver form (GC-211); <u>OR</u> (2) If a person cannot be found, submit a declaration (GC-02) explaining what efforts have been made to find that person. CRC 7.52 Notes: a. Letters of Temporary Guardianship issued to petitioner and aunt Savannah Gantt expire 7-22-2026. b. Demisha Odom, mother of the minors, was present at the 11/26/25 hearing
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